



File No.: EXP202212666

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure conducted by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On 23/11/2022, a Complaint Report was received by this Agency from the GUARDIA CIVIL, COMPANY OF ***LOCALITY.1, COMMAND OF BADAJOZ (hereinafter, the complainant) regarding a possible breach of the provisions of personal data protection regulations by A.A.A. with NIF ***NIF.1 (hereinafter, the defendant).

In the forwarding letter, the following is stated:

"It is verified that in the dwelling located at ***ADDRESS.1, in the locality of ***LOCALITY.1, where the reported person A.A.A. (***NIF.1) resides, there are two surveillance cameras installed.

These are installed on the balcony of the façade facing the mentioned street, hidden behind cardboard that has been perforated and oriented to capture images of the public space of the street in both directions.

The cameras are cubic in shape, measuring 7x7x3 cm. They are not directed towards the door of the dwelling. There is no informative sign regarding the installation.

It is considered that they are not fake cameras for the following reasons:

- They are of small dimensions and hidden among objects that make them difficult to discover, thus they do not exert any deterrent effect;
- No informative sign has been installed;
- The cameras have been installed since mid-July 2022.

It is noted that on 27/07/2022, a complaint was already filed for this type of infringement against the complainant, from which the AEPD issued a resolution warning of the infringement and requiring the removal of the cameras. The defendant has not only failed to uninstall them but continues to commit the infringement and now hides them behind cardboard to make them harder to discover.

A complaint dated 27/07/2022 and previous and current photographic reports are attached."

The documents provided are:

- Reports made by the FFCCSE
- Photographic report

SECOND: The defendant was sent a letter indicating the obligations they had regarding data protection and video surveillance, being notified on 28/09/2022, after the submission of a report from the complainant regarding the same facts on 05/09/2022.

THIRD: On April 4, 2023, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against the defendant for the alleged infringement of Article 5.1.c) of the GDPR and Article 13 of the GDPR, classified under Article 83.5 of the GDPR.

FOURTH: The aforementioned initiation agreement was notified in accordance with the provisions established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), on 13/04/2023, as recorded in the acknowledgment of receipt in the file, and after the period granted for the formulation of allegations, it has been confirmed that no allegations have been received from the defendant.

Article 64.2.f) of the LPACAP - a provision of which the defendant was informed in the initiation agreement - establishes that if no allegations are made within the stipulated period regarding the content of the initiation agreement, when it contains a precise statement regarding the responsibility attributed, it may be considered a proposal for resolution. In this case, the initiation agreement of the sanctioning file determined the facts that specified the accusation, the infringement of the GDPR attributed to the defendant, and the sanction that could be imposed. Therefore, considering that the defendant has not made any allegations against the initiation agreement of the file and in accordance with the provisions of Article 64.2.f) of the LPACAP, the aforementioned initiation agreement is considered in this case as a proposal for resolution.

In view of all that has been acted upon, the Spanish Agency for Data Protection considers the following

facts proven in this procedure,

PROVEN FACTS

FIRST: It is recorded, according to the complaint from the Guardia Civil, Company of ***LOCALITY.1, Command of Badajoz, that the defendant has installed two cameras on the balcony of the façade of their dwelling oriented to capture images of the public space of the street in both directions, and not towards their own entrance door.

SECOND: It is also recorded that there is no informative device regarding the installation of surveillance cameras.

LEGAL GROUNDS

I

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

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of Data.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, to the extent that they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

The physical image of a person, according to Article 4.1 of the GDPR, is a personal data and its protection is therefore subject to this Regulation. Article 4.2 of the GDPR defines the concept of "processing" of personal data.

“‘processing’: any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, communication by transmission, dissemination or any other form of enabling access, alignment, combination, restriction, erasure or destruction;”

Images generated by a system of cameras or video cameras are personal data, so their processing is subject to data protection regulations.

It is therefore pertinent to analyze whether the processing of personal data (images of natural persons) carried out through the reported video surveillance system is in accordance with the provisions of the GDPR.

Article 22 of the LOPDGDD establishes that natural or legal persons, public or private, may carry out the processing of images through camera or video camera systems for the purpose of ensuring the safety of persons and property, as well as their facilities.

The processing of personal data is subject to the other principles of processing contained in Article 5 of the GDPR. We will highlight the principle of data minimization contained in Article 5.1.c) of the GDPR, which states that personal data shall be “adequate, relevant and limited to what is necessary in relation to the purposes for which they are processed.”

This means that in a specific processing operation, only the relevant personal data that is necessary to fulfill the purpose for which it is processed may be processed. The processing must be appropriate and proportional to the purpose it aims to achieve. The relevance in the processing of data must occur both at the time of data collection and in the subsequent processing thereof.

In accordance with the above, the processing of excessive data must be restricted or the data must be deleted.

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The application of the principle of data minimization in the context of video surveillance implies that images of public roads cannot be captured, since the processing of images in public places, unless there is government authorization, can only be carried out by the Security Forces and Bodies. On some occasions, for the protection of private spaces, where cameras have been installed on facades or indoors, it may be necessary to record a portion of the public road to ensure the purpose of security.

That is to say, cameras and video cameras installed for security purposes may not obtain images of the public road unless it is essential for that purpose, or it is impossible to avoid it due to their location. And, in such extraordinary cases, the cameras may only capture the minimum portion necessary to preserve the safety of persons and property, as well as their facilities.

Under no circumstances will the use of surveillance practices beyond the environment subject to the installation be permitted, and in particular, they may not affect surrounding public spaces, adjacent buildings, and vehicles other than those accessing the monitored space.

The installed cameras may not capture images of third-party private spaces and/or public spaces without duly justified cause, nor may they affect the privacy of passersby freely moving through the area.

Therefore, the placement of cameras directed towards the private property of neighbors with the intention of intimidating them or affecting their private sphere without justified cause is not permitted. Images may also not be captured or recorded in spaces owned by third parties without the consent of their owners, or, where applicable, of the persons present in those spaces.

Furthermore, it is disproportionate to capture images in private spaces, such as changing rooms, lockers, or rest areas for workers.

III

In the present file, as indicated in the Complaint Record, there are two cameras installed at the home of the reported party, specifically at the window of the balcony of the facade facing the mentioned street, and oriented to capture images of the public space of the street in both directions. Additionally, wiring is perceived that goes from the camera to the interior of the dwelling.

According to the instruction carried out and the documentation in the file, it is considered that the facts presented violate what is established in Article 5.1.c) of the GDPR, which constitutes an infringement classified in Article 83.5 of the GDPR, which states the following:

“Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to 4%

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at most 10% of the total annual global turnover of the previous financial year, opting for the higher amount:

a) the basic principles for processing, including the conditions for consent in accordance with Articles 5, 6, 7, and 9; (...).”

For the purposes of the statute of limitations for violations, the violation indicated in the previous paragraph is considered very serious in accordance with Article 72.1 of the LOPDGDD, which establishes that:

“Based on what is established in Article 83.5 of Regulation (EU) 2016/679, the following are

considered very serious and shall be subject to a three-year statute of limitations: violations that constitute a substantial breach of the articles mentioned therein and, in particular, the following:
a) The processing of personal data in violation of the principles and guarantees established in Article 5 of Regulation (EU) 2016/679.

(...)"

IV

In accordance with the above, the processing of images through a video surveillance system, to be compliant with current regulations, must meet the following requirements:

1.- Natural or legal persons, public or private, may establish a video surveillance system for the purpose of preserving the safety of persons and property, as well as their facilities.

It must be assessed whether the intended purpose can be achieved by other means that are less intrusive to the rights and freedoms of citizens. Personal data should only be processed if the purpose of the processing cannot reasonably be achieved by other means, considering Recital 39 of the GDPR.

2.- The images obtained may not be used for a subsequent purpose incompatible with the one that motivated the installation of the video surveillance system.

3.- The obligation to inform the affected parties as provided in Articles 12 and 13 of the GDPR, and Article 22 of the LOPDGDD must be fulfilled.

In this regard, Article 22 of the LOPDGDD provides for a "layered information" system concerning video surveillance.

The first layer must refer, at a minimum, to the existence of the processing (video surveillance), the identity of the controller, the possibility of exercising the rights provided in Articles 15 to 22 of the GDPR, and where to obtain more information about the processing of personal data.

This information must be contained in a device placed in a sufficiently visible location and must be provided in advance.

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The information in the second layer must be available in a location easily accessible to the affected party, whether it be an information sheet at a reception, cashier, etc., placed in a visible public space or on a web address, and must refer to the remaining elements of Article 13 of the GDPR.

4.- The processing of images through the installation of camera systems or video cameras must be lawful and comply with the principles of proportionality and data minimization, as previously indicated.

5.- The images may be retained for a maximum period of one month, except in cases where they must be retained to prove the commission of acts that threaten the integrity of persons, property, or facilities.

In this second case, they must be made available to the competent authority within a maximum period of 72 hours from the time knowledge of the existence of the recording is obtained.

6.- The controller must maintain a record of processing activities carried out under its responsibility, which includes the information referred to in Article 30.1 of the GDPR.

7.- The controller must conduct a risk analysis or, where appropriate, a data protection impact assessment, to detect the risks arising from the implementation of the video surveillance system, evaluate them, and, where appropriate, adopt the appropriate security measures.

8.- When the system is connected to an alarm center, it may only be installed by a private security company that meets the requirements set forth in Article 5 of Law 5/2014 on Private Security, of April 4.

The Spanish Data Protection Agency provides access through its website [<https://www.aepd.es>] to:

- the legislation on personal data protection, including the GDPR and the LOPDGDD (section "Reports and resolutions" / "regulations"),
- the Guide on the use of video cameras for security and other purposes,
- the Guide for compliance with the duty to inform (both available in the "Guides and tools" section).

It is also of interest, in cases of low-risk data processing, the free tool Facilita (in the “Guides and tools” section), which, through specific questions, allows the controller to assess their situation regarding the personal data processing they carry out, and, where appropriate, generate various documents, informative and contractual clauses, as well as an annex with indicative minimum security measures.

V

The installation of a video camera entails the unavoidable obligation to notify the presence of the same through an informative device, in a sufficiently visible location.

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identifying at least the existence of the processing, the identity of the controller, and the possibility of exercising the rights provided for in Articles 15 to 22 of the GDPR. In the present case, according to the information contained in the Complaint Record, no sign has been installed to inform about the existence of video surveillance cameras. Therefore, it is considered that the facts presented violate what is established in Article 13 of the GDPR, which constitutes an infringement classified under Article 83.5 of the GDPR, which states the following:

“Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an undertaking, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

(...)

b) the rights of the data subjects under Articles 12 to 22; (...).”

For the purposes of the limitation period for infringements, the infringement indicated in the previous paragraph is considered very serious in accordance with Article 72.1 of the LOPDGDD, which establishes that:

“Based on what is established in Article 83.5 of Regulation (EU) 2016/679, the following infringements are considered very serious and shall be subject to a limitation period of three years for substantial violations of the articles mentioned therein and, in particular, the following:

h) The omission of the duty to inform the affected party about the processing of their personal data in accordance with the provisions of Articles 13 and 14 of Regulation (EU) 2016/679 and Article 12 of this Organic Law.”

VI

The fine imposed must be, in each individual case, effective, proportionate, and dissuasive, in accordance with the provisions of Article 83.1 of the GDPR. Therefore, it is appropriate to adjust the sanction to be imposed according to the criteria established in Article 83.2 of the GDPR, and in accordance with the provisions of Article 76 of the LOPDGDD, regarding paragraph k) of the aforementioned Article 83.2 GDPR.

In light of the facts presented, it is considered appropriate to impose a sanction on the respondent for the violation of Article 5.1.c) of the GDPR, classified under Article 83.5 of the GDPR, and Article 13 of the GDPR classified under Article 83.5 of the GDPR. The sanction to be imposed is an administrative fine of 500 euros for the infringement of Article 5.1.c of the GDPR, and 500 euros for the infringement of Article 13 of the GDPR.

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Article 58.2 d) of the GDPR states that each supervisory authority may “order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation,

where appropriate, in a specified manner and within a specified time frame...”, it is indicated that the respondent must proceed, within 30 days from the receipt of this resolution, to:

- The placement of the information device in the monitored areas or to complete the information provided therein (it must identify, at least, the existence of processing, the identity of the controller, and the possibility of exercising the rights provided for in those provisions), placing this device in a sufficiently visible location, both in open and closed spaces.
- The removal of the camera or video camera system from the current location or its reorientation, in such a way that the viewing of the images observed evidences that it does not capture
 - the adjoining dwelling.
 - the public road.

It is warned that failure to comply with the requirements of this agency may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its Articles 83.5 and 83.6, which may lead to the initiation of further administrative sanctioning proceedings.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO IMPOSE on A.A.A., with NIF ***NIF.1,

- For an infringement of Article 5.1.c) of the GDPR, classified under Article 83.5 of the GDPR, a fine of 500 euros (FIVE HUNDRED euros).
- For an infringement of Article 13 of the GDPR, classified under Article 83.5 of the GDPR, a fine of 500 euros (FIVE HUNDRED euros).

SECOND: To order A.A.A., with NIF ***NIF.1 under Article 58.2.d) of the GDPR, for an infringement of Article 5.1.c) of the GDPR classified under Article 83.5 of the aforementioned Regulation, and for an infringement of Article 13 of the GDPR, classified under Article 83.5 of the GDPR, that, within 30 days from the date this resolution becomes enforceable, proceed to:

- The removal of the camera or video camera system from the current location or its reorientation, in such a way that the viewing of the images observed evidences that it does not capture:
 - the adjoining dwelling.
 - the public road.

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- The installation of an informative device, in a sufficiently visible location and with the specifications regulated in Article 22 of the LOPDGDD.

THIRD: NOTIFY this resolution to A.A.A.

FOURTH: Warn the sanctioned party that they must comply with the imposed sanction once this resolution becomes executive, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, to the restricted account No.

IBAN: ES00-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. Otherwise, collection will proceed in the executive period.

Upon receiving the notification and once it is executive, if the date of executiveness falls between the 1st and the 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day thereafter, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day thereafter.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, the provisional suspension would be considered terminated.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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